

25STCV29171 25STCV29171

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 25STCV29171 Hearing Date: July 29, 2026 Dept: 512

HEARING DATE: Wed., July 29, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Deras

v. Deras, et al. COMP.

FILED: 10-6-25

CASE NUMBER: 25STCV29171

NOTICE: OK

PROCEEDINGS: MOTION

FOR SUMMARY JUDGMENT

MOVING PARTY: Plaintiff Israel Deras

RESP. PARTY: Unopposed

SUMMARY JUDGMENT

TENTATIVE RULING:

Plaintiff Israel Deras's

motion for summary on the verified complaint for partition is DENIED.

Moving party is ordered to

give notice.

SERVICE:

[X] Proof of

Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address

(CCP §§ 1013, 1013a) OK

[X] 81 Calendar

Days Lapsed (CCP §§ 12c, 437c, 1005(b)) OK

OPPOSITIONS: ☐ Late [X] None

REPLIES: ☐ Late [X] None

ANALYSIS:

I.

Background

On October 6, 2025, Plaintiff Israel

Deras filed a verified complaint for partition of 3016 Isabel Drive, Los

Angeles, CA 90065. Defendant Maria Deras in pro per answered the complaint on

November 5, 2025.

II.

Legal

Standard & Discussion

The pleadings frame the issues for motions,

“since it is those allegations to which the motion must respond. (Citation.)”

(Scolinos v. Kolts (1995) 37 Cal.

App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29

Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or

summary adjudication “is to provide courts with a mechanism to cut through the

parties’ pleadings in order to determine whether, despite their allegations,

trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c,

subdivision (c), requires the trial judge to grant summary judgment if all the

evidence submitted, and ‘all inferences reasonably deducible from the evidence’

and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inference that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1014 (citation omitted).)

Defendant

answered in pro per and filed no opposition to the motion. “Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party.

... ‘Trial judges must acknowledge that in propria persona litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ (Citation). When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court...

[S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.” (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

Plaintiff

moves for summary judgment on the partition action based on a representation that Defendant admitted Requests for Admissions numbers 1-5. The admitted requests contain the following:

REQUEST FOR ADMISSION NO. 1: Admit that YOU took title to the PROPERTY from the Grant Deed recorded on December 13, 2006 (a copy of which is attached hereto as Exhibit A).

REQUEST FOR ADMISSION NO. 2: Admit that YOU took 1/2 title to the PROPERTY from the Grant Deed recorded on December 13, 2006 (a copy of which is attached hereto as Exhibit A).

REQUEST FOR ADMISSION NO. 3: Admit that the individual named Jose Israel Deras was YOUR husband on December 6, 2006.

REQUEST FOR ADMISSION NO. 4: Admit that Plaintiff, ISRAEL E. DERAS currently holds 1/2 title to the PROPERTY.

REQUEST FOR ADMISSION NO. 5:
Admit that once the PROPERTY is sold that Plaintiff, ISRAEL E. DERAS is entitled to a minimum of 1/2 of the net proceeds from the sale of the PROPERTY.

The grant deed shows a conveyance by Maria Deras a married woman transferring a one-half interest to Israel Deras, a single man in November 2006. The admissions establish the parties were married at the time notwithstanding the language in the grant deed.

Matters admitted or deemed admitted through an order deeming request for admissions admitted conclusively establish the content of the admissions in the litigation and are not subject to contest through contradictory evidence. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 775 accord Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 736.) The responses were served under penalty of perjury.
[Declaration of Alana Anaya, Ex. A-B.] (Code Civ. Proc., § 2015.5.)

“Under California law, the term ‘partition’

signifies ‘the procedure for segregating and terminating common interests in

the same parcel of property.’” (14859 Moorpark Homeowner's Ass'n v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1404–1405.)

(a) A partition action may

be commenced and maintained by any of the following persons:

(1) A coowner of personal property.

(2) An owner of an estate of

inheritance, an estate for life, or an estate for years in real property where

such property or estate therein is owned by several persons concurrently or in successive estates. ...

Code Civ. Proc., § 872.210

(a) A description of the property that is the

subject of the action. In the case of tangible personal property, the

description shall include its usual location. In the case of real property, the

description shall include both its legal description and its street address or common designation, if any.

(b) All interests the plaintiff has or claims

in the property.

(c) All interests of record or actually known

to the plaintiff that persons other than the plaintiff have or claim in the

property and that the plaintiff reasonably believes will be materially affected

by the action, whether the names of such persons are known or unknown to the plaintiff.

(d) The estate as to which partition is sought

and a prayer for partition of the interests therein.

(e) Where the plaintiff seeks sale of the

property, an allegation of the facts justifying such relief in ordinary and concise language.

Code Civ. Proc., § 872.230

The

complaint seeks the sale of the property. The motion remains unopposed.

Notwithstanding

the lack of opposition from the pro per defendant, however, the basis of the partition remains uncertain. Specifically, Plaintiff fails to address the state of the parties' marriage. A partition action is proper following a divorce decree. (*Romanchek v. Romanchek* (1967) 248 Cal.App.2d 337, 341.) The equitable nature of a partition action requires consideration of any potential marital estate and terms of any divorce, if applicable. (*Porter v. Superior Court* (1977) 73 Cal.App.3d 793, 803 [Court holds unquestioned authority to address community property disputes, as well the ability to determine the existence of separate property properly part of a civil partition action]; see *In re Marriage of Leversee* (1984) 156 Cal.App.3d 891, 897.)

In other words, while a partition may be proper post-divorce, the lack of any information as to the parties' marriage and any potential assignment of property rights within the former marital estate requires address. If the parties remain married, Plaintiff needs to establish the propriety of proceeding with a civil action, as opposed to a family law court.

Furthermore,

even if the court found a basis for partition, Plaintiff fails to request an interlocutory judgment and potential appointment of a referee.

"(a) If the

court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (Code Civ. Proc., § 872.720, subd. (a).)

"The court shall order that the property be divided among the parties in accordance with their interests in the property as determined in the interlocutory judgment." (Code Civ. Proc., §872.810.) "Notwithstanding Section 872.810 , the court shall order that the property be sold and the proceeds be divided among the parties in accordance with their interests in the property as determined in the interlocutory judgment in the following situations: (a) The parties agree to such relief, by their pleadings or otherwise. (b)

The court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property. For the purpose of making the determination, the court may appoint a referee and take into account his report.” (Code Civ. Proc., § 872.820.)

III.

Conclusion

& Order

The motion for summary

judgment is DENIED. Plaintiff fails to shift the burden establishing a right to judgment. (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff must account for the state of the parties’ marriage, and any potential disposition of any potential community property estate addressed in a divorce decree. If the parties remain married, Plaintiff needs to submit legal support for the right to proceed with a partition in the civil court rather than proceeding in family law.

Plaintiff is ordered to give notice.